CHAPTER 75 Public Services

Classification of Services

The public services (civil services or government services) in India are classified into three categories—all-India services, Central services and state services. Their meaning and composition are explained below:

 **All-India Services**

All-India services are those services which are common to both Central and state governments. The members of these services occupy top positions (or key posts) under both the Centre and the states and serve them by turns.

At present, there are three all-India services. They are:

1. Indian Administrative Service (IAS)
2. Indian Police Service (IPS)
3. Indian Forest Service (IFoS)

In 1947, the Indian Civil Service (ICS) was replaced by IAS, and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as all-India services. In 1966, the Indian Forest Service was established as the third all-India service[1].

Article 312 of the Constitution authorises the Parliament of India to create new All-India Services based on a resolution passed by Rajya Sabha to that effect. Thus, a new All-India Service can be created only by an act of Parliament and not by a resolution of Rajya Sabha. However, the Parliament cannot do so without the recommendation of Rajya Sabha. This power is given to the Rajya Sabha to protect the interests of states in the Indian federal system.

Interestingly, the Drafting Committee of the Constituent Assembly did not provide a constitutional status to the All-India Services. Accordingly, the Draft Constitution did not make any mention of the All-India Services. However, the Constituent Assembly included provisions with respect to the All-India Services, which were approved. These provisions (under Article 312) not only gave a constitutional status to the All-India Services but also provided for the creation of new All-India Services. Sardar Vallabhbhai Patel was the chief protagonist of All-India Services in the Constituent Assembly. Hence, he came to be regarded as the 'Father of All-India Services'.

The All-India Services Act of 1951 authorised the Central Government to make rules in consultation with the state governments for the regulation of recruitment and service conditions of the members of All-India Services. The members of these Services are recruited and trained by the Central Government but are assigned to different states for work. They are borne on different state cadres; the Centre having no cadre of its own in this regard. They serve the Central Government on deputation and after completing their fixed tenure, they go back to their respective states. The Central Government obtains the services of these officers on deputation under the well-known tenure system. It must be mentioned here that irrespective of their division among different states, each of these All-India Services form a single service